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Housing With a Record

How screening works, what your rights are, and how to prepare a strong application.

Finding a place to live with a record can feel like a wall, but there are ways through it. Understanding how landlords screen, knowing your rights, and preparing a strong application make a real difference. This guide walks you through all three, and gives you a plan for when a private landlord says no.

Housing law varies by state and city, and this is general guidance, not legal advice. Fair-housing protections exist; a local fair-housing or legal-aid office can advise you on your situation.

How landlords screen

- Most run a background and credit check and look at rental history and income.
- Many consider the nature and age of an offense rather than a flat rejection, and some cities require them to.
- Private landlords and small owners often have more flexibility than large complexes with rigid policies.

Know your rights

- A blanket ban on anyone with a record can, in some places, run into fair-housing law. Learn your local rule.
- If you are denied based on a background or credit report, you often have the right to see it and dispute errors.
- Public and subsidized housing has its own rules, which vary; ask the specific housing authority about your eligibility.

Prepare a strong application

- ☐ Gather proof of income and steady employment.
- ☐ Line up references: past landlords, employers, a caseworker, a faith leader.
- ☐ Write a short, honest letter of explanation you can offer if asked: brief, responsible, forward-looking.
- ☐ Be ready to offer a larger deposit or a co-signer if you can, which reassures a hesitant landlord.
- ☐ Fix what you can on your credit report first (see the credit workbook).

When a landlord says no

- Ask politely why, and whether references or a deposit would change the answer.
- Focus on private owners and smaller landlords, who can decide case by case.
- Ask reentry programs and caseworkers; many keep lists of housing that works with records.
- Do not give up after a few no's. It often takes persistence, not a different you.

My housing plan

References I can line up:

Places and programs to try this week:

This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship. Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.

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